

Robed Rage

Family court judges have many ways of attacking protective mothers who appear before them as litigants. Since many of these attacks make little sense either logically or legally, one tends to look elsewhere for an explanation. A likely underlying reason is that the protective mother (or her attorney, sympathetic caseworkers or therapists, or others who support her position) presents a perceived threat to the judge's authority. That is, a judge afraid of losing control of their courtroom to a protective mother treats the legal system as a way of beating down the threat—and the proper inquiry in a case of alleged child abuse is obscured behind a screen of “robed rage.”

Examination of court documents reveals this phenomenon in several different guises. Generally, robed rage means that an abuse case is transformed, unofficially, into an inquisition into the complaining mother's character, with a judge apparently finding so many reasons to criticize the mother that he has no time to investigate whether her charges are justified. In more extreme cases, judges who feel their authority threatened actually take the law into their own hands, ignoring rules and violating judicial ethics in order to ensure that any challenge to their finding is reliably punished. “Robed rage” can also express itself in an abuse of a judge's power to hold litigants or witnesses in contempt of court; in unnecessary and traumatic private interviews by the judge of a child claiming abuse; or in the use of name-calling from the bench. In nearly all cases, however, “robed rage” is not spontaneous or arbitrary. In protective parent cases it is part of a vicious cycle—a symptom

of a system gone awry. The judges' actions in these cases are *reflexive*—each instance of robed rage acts to “re-create” the system of madness that paved the way for this latest action; the new act then helps to govern each of the judge's subsequent actions as well.

Family court judges' intemperate behavior when faced with sex abuse charges is no secret to the matrimonial bar. Several attorneys we interviewed have admitted that when representing a mother in a custody/visitation action, they generally decline to present evidence of sex abuse, even if the charges are corroborated. Likewise, many of the mothers we interviewed have reported being turned down by one attorney after another, the lawyers saying they could not fight a judge known for his angry reaction to sex abuse claims.¹

What sometimes happens to attorneys who do choose to risk such anger shows that the danger is not imaginary. Julia Heit, a New York matrimonial attorney with many years of experience, complained in an appellate brief about the rage of a Brooklyn Family Court judge who had repeatedly threatened her for trying to present evidence that her client's daughter had been sexually abused. In the brief, Heit described how the judge “persistently berated [her] for attempting to make offers of proof and on a number of occasions threatened to hold counsel in contempt if she persisted.”² Heit told us: “You can't see from the transcript what it was like. He shouted. He threw down his pencil. He pointed his finger at me and warned me he'd hold me in contempt. He shouted at me that he was ‘appalled’ when I tried to put evidence in the record. And it was over and over again.” Heit reported that before each appearance during the trial, she would make arrangements with neighbors to take care of her dogs in case the judge threw her in jail that day. Taken together, the different aspects of robed rage constitute a central vein in the madness of the family courts.

ACCUSING THE ACCUSER

A judge who is strongly disposed to disbelieve a charge of child sex abuse by one parent against another can often manage to avoid an inquiry into the troubling issue simply by shifting the blame to the accuser.³

For example, in a case that arose in Brooklyn, New York, Child Protective Services (CPS) officials accused the father of sexually abusing his six-year-old daughter based on an eyewitness account. However, the family court judge was less interested in investigating the abuse report than in evaluating the mental state of the mother. He ordered her to submit to a psychological evaluation, warning bluntly that if she did not appear within fourteen days for the examination, he would immediately order her daughter removed from her home. In fact, the judge did not even wait fourteen days; just four days later, he ordered the child placed in foster care, although there was no evidence of any abuse or neglect committed by the mother, nor any evidence that she was mentally ill. The judge did this because the mother had missed an appointment with an evaluating psychologist—ignoring the fact that she had gone, instead, to a hospital complaining of chest pains. He also ignored the fact that she was ready and willing to reschedule the psychologist's appointment within the court-ordered fourteen days.⁴

Ultimately, the mother was convicted of “neglect” on the sole ground that she believed that her child had been abused—although the charge was supported by the child, several psychologists, and an eyewitness. In other words, the danger the mother posed to her child was that she believed the child was endangered by someone else. Clearly, the family court could not tolerate the mother's belief. The only alternative to accepting it, however, was to punish the accuser—which is what, strange as it sounds, the court chose to do.

An equally startling example of this tendency can be seen in a child sex abuse case litigated in Connecticut in the 1990s. In that case, two boys reported being sexually abused by their divorced father, and ex-

tensive corroboration of their reports was developed in Vermont, where the boys lived with their mother.⁵ However, the father (who lived in Connecticut) found a local family court judge more sympathetic to his position. The Connecticut courts ultimately assumed jurisdiction over the case. When a Connecticut judge ordered the children “temporarily” transferred to the custody of the accused’s sister (who denied the abuse charges against her brother and who had herself been charged with participating in the abuse), the mother hesitated to bring the children into that state while she fought the change of custody, clearly fearing that the children would not be safe if the court’s order was carried out. At that moment the entire case was turned on its head.

The Connecticut judge, apparently indifferent to the evidence of sex abuse, expressed indignation at the mother’s attempts to evade his jurisdiction, shifting the focus of the court’s interest from the charge of abuse to whether the mother was shamming a back injury to stay out of Connecticut: “[She] made misrepresentations to the Court that she was so sick she could not travel to the state of Connecticut and yet was sighted in the state of Connecticut” Then, as if it were a logical continuation, the judge snapped to the attorneys present:

I think the children are at risk, that the behavior has been so odd and so outrageous and I would also request of the Department [of Children and Youth Services] . . . to contact the Federal Bureau of Investigation.

The judge was still not finished; he also fulminated against Vermont caseworkers and prosecutors who did not appear to support his point of view:

I don’t know what the behavior of the prosecutor in Vermont is, but I think at this point in time that leaves a lot to be desired Somebody ought to get a handle on it and not just let another child drift down the road via some person who travels around the country and plays the role of goddess. [There

was no proof that the mother had traveled anywhere with the children outside Vermont.]

When one of the attorneys present gave the judge the name of a Vermont caseworker involved in the father's investigation, the judge erupted again:

I'd like to thank you for giving me the name of that party because I will ask that that be noted for the record, that that is among one of the people that I will be looking to as being responsible in the event that anything happens to those children.... This game that's being played, that seems to be, may have even be [sic] fostered by the State's Attorney of Vermont, I don't know, but that's why I'm asking you to contact the Federal Bureau of Investigation, I think that there's something amiss.... I think there's been essentially a violation of the anti-kidnapping statute and I think, you know ... I want the name you gave me, you gave me the name, Mr. Adams.... I gather his namesake may have acted more responsibly.

In a few short minutes, the judge had wiped the slate clean of the extensive evidence of abuse by the father and had labeled the mother an "outrageous" woman who played "goddess"; he had then taken the illogical leap of declaring the children "at risk" (even though there was no evidence of any neglect or abuse by the mother) and of accusing the mother of "kidnapping" (a crime she had not even been charged with) and had even gone on to attack Vermont prosecutors and caseworkers for not attacking the mother (which, of course, would have been directly contrary to the conclusions they had reached in the case)! What began as irritation with a party who resisted the jurisdiction of his court ended as an inversion of the inquiry the judge was supposed to pursue, from an investigation of alleged sex abuse to the denunciation of a recalcitrant litigant.⁶

A similar result occurred in a case in Idaho in 1993, in which a nine-year-old boy reported that his father had fondled his genitals on at least two occasions. A pediatrician testified that the boy's disclosure was credible, and the boy repeated his account to the judge in a special session in the judge's chambers.⁷ The judge, however, concluded that although the boy sincerely believed he had been abused, the charge must have resulted from an "abuse atmosphere" that supposedly infected the boy's home, which in turn must have been caused by the mother. Although no one had charged the mother with any sort of neglect or abuse, and no evidence against the mother had been presented to the court, the judge immediately ordered that both boys living with the mother be removed from her home and placed in foster care.⁸ Throughout the long and agonizing litigation that followed, the judge repeatedly justified his rulings against the mother by ridiculing her legal efforts to clear her name and to retain custody of the children, efforts the judge termed "obsessive and compulsive."

Ten years earlier, a mother in Buffalo, New York, bore the brunt of another family court judge's unwillingness to believe an allegation of child abuse. Her husband had been charged by CPS with touching the eleven-month-old child's vagina and with placing her hand on his penis.⁹ After the judge refused to consider the mother's request that the father's visits be supervised, she pleaded to have visits limited to "four hours at a time so as to not interfere with breastfeeding the [infant] child."¹⁰ According to the mother's sworn affidavit, the judge then "screamed across the courtroom" that if the mother "did not want to go along with his [the judge's] liberal visitation order, [the mother's] maintenance and child support would be reduced from \$150 per week to \$25 per week."¹¹ During a court appearance almost a year later, the mother again urged the court to curtail the father's visitation due to allegations of continuing abuse. The judge did limit visitation but warned the mother that if she "wasn't careful," he would remove the infant from her custody altogether.¹² During that hearing, the judge repeatedly and sarcastically referred to the

mother as “the Virgin Mary” because she testified to overlapping sexual relationships at the time the child was conceived.¹³

The judge continued to stigmatize the mother throughout the proceeding. On one occasion, when the father sought a change of custody in the form of an emergency motion, the judge arranged for the sheriffs to pick up the mother and bring her to court, where, she says, she was “placed in the criminal’s chamber in the courtroom [and] threatened with handcuffs” while the judge “acted in a jovial manner” as the father sat in court laughing with his attorney.¹⁴

Along similar lines, in a New Jersey case, a mother discovered that the mere fact of her suspicions concerning her ex-husband’s conduct toward her daughter could provoke a harsher reaction from a family court judge—against *her*—than the possibility of sexual abuse could trigger against *him*. A family court judge had appointed a psychologist to make a recommendation as to custody and visitation of the parties’ young daughter. Two days before Christmas 1997, just before that report was received, the father filed an “emergency” motion seeking more holiday visitation time. Since the original judge was on vacation, a new judge presided over the “emergency” hearing that afternoon. Earlier, the mother had conveyed her suspicions of possible sex abuse by the father to CPS, but the issue was not supposed to be before the new judge that afternoon. However, stating that the mother’s suspicions about the father were “escalating,” the new judge decided, without having taken any evidence or hearing from any witnesses, to transfer the girl’s custody to the father. She claimed that the mother’s concern that the father might have abused the child (a suspicion that the judge believed, after a quick review of the case file and without taking any evidence, to be groundless) was “worse” for the child than the possibility of abuse itself. The judge went so far as to claim that the mother’s mere suspicions of abuse could “place [the child] in danger.”¹⁵ We are not aware of any sound psychological doctrine to support such a view—and certainly no evidence was before the court to support it in this case. (In fact, when the custody

evaluator's report was received shortly thereafter, it did *not* recommend transfer of custody to the father, even though the evaluator was well aware of the history of abuse allegations.)

Since the judge's stated reasons for her transfer of custody were clearly insufficient, it is hard to resist the conclusion that her real motives were unstated ones. Like the other judges described in this section, she was probably driven by an overwhelming desire to stop allegations that threatened her control over the litigants in a divorce case. The judge could not stop the accusations without punishing the accuser. So that is what she did. Naturally, certain judges are more prone to this behavior than others. Two of the cases we examined—cases, incidentally, in which the protective mothers eventually went “underground” with their children—involved the same New York family court judge. These two mothers never met, and they did not even know of each other's existence, but they both told their stories (at different times) to New York State legislators examining a disturbing pattern of child abuse accusations being turned against the accusers.

In the first case, an abuse allegation against the children's father was buttressed by substantial medical evidence. Medical experts testified to telltale “anal scarring” and chlamydia (a sexually transmitted disease) in the three-year-old girl, and a “vaginal canal [that] was found to be rounded instead of oval, [and] roughened instead of smooth ... and a stretching of the hymen” in her seven-year-old sister.¹⁶ Nevertheless, the mother was subjected to a grueling cross-examination that lasted a total of twenty-one days¹⁷ in which at least one of the major topics of questioning was her “born-again” Christianity.

Again and again, she was asked about her religious beliefs, the clear implication being that her fundamentalist views were abnormal. In fact, according to the mother's report, the judge himself interrupted the attorneys (none of whom was Christian) to ask her if she “actually believes that ‘Christian’ means ‘Christ is in her’”? The mother answered, “Yes.” We have learned that the judge later referred to this mother, among his

associates, as “the nut.” Even a popular family law attorney who had barely met this woman freely called her “crazy” in speaking to one of us.

In the second case, the mother was forced to submit to an evaluation by a court-appointed psychiatrist known for controversial views about women who make sexual abuse charges. The psychiatrist, Dr. Arthur Green (described in more detail in Chapter 7), diagnosed the mother as emotionally “labile,” suffering from a “histrionic personality disorder” with some “paranoid features.” Despite some corroboration of her abuse charge against the father,¹⁸ Dr. Green’s diagnosis settled the case in the eyes of the judge, who began to refer to the mother as “the paranoid.” So another mother had been accused in family court—because she had accused a father of sexual abuse. While some judges are more prone than others to accuse the accuser, a pattern of turning a sex abuse allegation against the accusing mother can be seen in a wide range of family court cases. Indeed, a remarkable number of court decisions have awarded custody to a father precisely because the mother accused him of sex abuse. Although there is no written law in any state that making a charge of sex abuse (even if it is ultimately unproved) renders a mother unfit for custody, many family courts function as though there were, applying what is in a sense the ultimate penalty against protective parents.¹⁹ H. Joan Pennington, former president of the National Center for Protective Parents, has reported to us that in more than half of the 3,145 cases her center reviewed in which a mother accused the father of child abuse, the father was ultimately awarded custody.

VIGILANTE JUDGES

When a family court judge has singled out the accusing mother as the root of all evil in their courtroom, accusing the accuser is not always enough. Sometimes robed rage goes further. In some cases, judges have

taken the law into their own hands to ensure that abuse accusations are not investigated and that mothers who insist on pressing them are punished—legally or not.

In one case that arose in Brooklyn, New York, the Family Court judge, according to a formal complaint lodged by the mother's lawyer, "deliberately and knowingly suppressed highly incriminating evidence of sexual abuse [by the father]." ²⁰ The judge had already ignored the claims of the children themselves—the daughter said her father had held her little brother in an oven while sexually abusing her—and the pleas of the children's therapist, who said, "I don't think these kids will make it if the father gets custody."

Instead, through private communication with child welfare officials, the judge encouraged CPS officials involved in the case to charge the *mother* with "child neglect" because she had moved her children from one mental health facility to another. ²¹ Significantly, such communication of a judge with officials connected with a case, without the knowledge of the litigants—termed *ex parte* communication by lawyers—is a breach of judicial ethics. ²² Here, then, was a judge—a guardian of the law—apparently ignoring his legal and ethical obligations in order to punish a mother whose resistance to his view of the case the judge clearly found intolerable.

A family court proceeding in Buffalo, New York, was equally marred by judicial overreaching to punish the protective mother. The mother, in the end, lost custodial rights to her three-year-old daughter and was given instead severely restricted, supervised visitation. This was not the outcome of dispassionate deliberation by the judge. In fact, it allegedly occurred in violation of the rules of law. In a formal statement, the mother's attorney has written:

the proceedings . . . in which I have participated in the past year have been characterized by rudeness and anger of the Court directed at my client, myself . . . [and by] *ex parte* communica-

tions and meetings between the Court and counsel for the defendant [ex-husband], law guardian and witnesses; substantial disregard of ordinary procedural law; [and] substantial disregard of the substantive law with respect to transfer of custody.²³

The judge's alleged violation of his legal and ethical obligations was, again, clearly connected with his rage at the mother's conviction that sex abuse had actually occurred. In a sworn statement, the mother has described a conversation she had with her former attorney, who told her "that during a phone call Justice Doyle screamed at him [and] asked him 'did it ever occur to you that she [the mother] is teaching the baby to say these things?'"²⁴

When judicial rudeness and ex parte communications did not suffice to silence the mother, the judge apparently resorted to civil rights violations. In legal papers filed with an appellate court, the mother's attorney has stated the following (under penalty of perjury)²⁵ about the judge's order switching custody of the three-year-old to her father:

Said Order, dated June 30, 1986, by Justice Doyle was made and entered ex parte without any written application and without any notice to [the mother's counsel] nor opportunity to be heard by telephone or otherwise ... where the Court's ex parte custody transfer was by its terms based solely on the Letter/Report dated June 17, 1986 of Dr. Bruce Bleichfeld, a psychologist appointed as the Court's witness ... and where no evidentiary hearing has been held as to its contents, nor opportunity permitted to cross-examine the Court's psychologist-witness as to his credentials and expertise. (pp ... 1-3)

According to these statements, the mother had become a "bad" parent to the family court judge because of the way she pursued her claims in court. And the judge had bent the law out of shape to put her in her place. Robed rage had become vigilante justice.

Lest the unwary reader conclude that this sort of justice is dispensed only in the state of New York, a case in Idaho deserves mention here as well. In the early 1990s, during divorce litigation between a couple with four children, one of the daughters alleged that the father had sexually abused her. In response, the father—rather than fighting the charge—agreed to waive all claims to custody, and even to visitation, with that child. Later, in the spring of 1993, one of the boys made a similar accusation. The case was then transferred to a different judge, who interviewed the nine-year-old boy in his chambers, barring the mother's counsel from the room during the questioning. Transcripts of the interview show that the boy described to the judge two incidents in which the father had fondled his genitals. A pediatrician testified that the boy's report was credible. Nevertheless, the judge, without holding a full hearing into the issue (although he had earlier promised the mother's attorney he would do so) and without even sharing the boy's testimony with the mother or her lawyer, promptly ruled that no abuse had occurred; he blamed the boy's belief he had been abused on an "abuse atmosphere" that allegedly pervaded the mother's home, presumably because of the previous accusation against the father by one of his daughters. (As previously noted, that accusation was never examined in court by agreement of the parents, since the father waived all custody and visitation claims concerning that girl.) The judge abruptly ordered the boy and his younger brother into foster care.²⁶

The children's mother, not surprisingly, fought vigorously for her children's return. For weeks she was scarcely allowed to speak to them. When, after several months, she was told that the foster parents intended to place the children "temporarily" with the very father accused of child abuse, she signed an agreement with her ex-husband that allowed the children to return to her home provided (among other things) that she would not accuse the father of abuse and that she would not seek a new counselor for the older of the two boys unless his current counselors agreed to the change.

The mother later arranged for a meeting between the boys and Dr. Lenore Walker, a prominent expert in child sexual abuse, with the consent of one of the boys' counselors. (The other counselor appears not to have known of the meeting.) She later testified that Dr. Walker did not actually provide counseling; she said she only intended to let Dr. Walker get to know the boys in case something happened in the future. No one else testified about what had happened at the meeting. The judge responded with outrage. First, he rewrote the terms of the agreement the mother had signed: the agreement spoke only of "counseling" and affected only one of the two boys, but the judge claimed from the bench that that her agreement meant "that there will be no contact, counseling, interviews, assessments or visits with psychologists, psychiatrists or other mental health professionals without both [counselors] having approved in advance such contact or counseling."²⁷ Then the judge ruled that the mother was in contempt of court—even though no one who was present at the meeting with the psychologist had testified to anything that violated the mother's agreement—and sentenced her to five days in jail. In his decision, he again called the mother's behavior "obsessive," questioned her "reason and common sense," accused her of excessive challenges to his orders, and stated that her jail sentence was intended as a "clear message" that such conduct "must come to an end."²⁸ This was too much for the appellate judge who supervised the court in question; he overturned the contempt finding and the jail sentence, finding the contempt conviction "procedurally flawed and substantively deficient."²⁹ In a word, the wheel of justice had come full circle: the family court judge, who accused the protective mother of misusing the courts, had in fact been the one guilty of abusing his judicial power, ignoring procedural law, and glossing over facts in his desire to punish the mother. And although the jail sentence he ordered was never served, he continued to malign the mother throughout the case. Eventually the mother lost custody of both her boys to the alleged abuser.

In a 2002 New Jersey divorce case, a three-year-old girl, one of four children, made statements suggesting that her father had sexually abused her. The father had a history of serious drug and alcohol abuse. The psychologist to whom CPS referred the child concluded: "My meetings with [the child] confirm the Division's assessment that [she] has experienced inappropriate sexual contact with her father while at visitation."³⁰ However, CPS ultimately dropped the charge against the father and then charged the mother with physically abusing two of the children. (That case is still being litigated; the mother continues to deny the charge against her.)

The effect of CPS's charge against the mother was rapid and severe. The family court judge, without taking evidence or hearing from witnesses, promptly removed all four children from the mother's home and even denied her visits with the elder children and telephone contact with all of them—even though the mother had yet to have her day in court on the charges against her.³¹ Remarkably, all this was done in direct violation of a higher court's ruling (in an earlier case) forbidding family court judges from making temporary transfers of custody without actually taking evidence.³² Yet this is exactly what the judge did. Why did a judge ignore the law? Could it be because not to do so would have allowed a protective mother to go on complaining of sexually inappropriate behavior by her ex-husband?

STAR CHAMBER SESSIONS

In family courts, there are forms of vigilante justice to which even children may be subjected. Perhaps the most startling, to an uninitiated observer, is the use by family court judges of private interrogations of a child who has reported abuse. In theory, such interviews are designed to give a child a forum for telling their story that is less intimidating than a formal courtroom. But unscrupulous judges can turn this benign the-

ory on its head. For instance, in one New York case, the family court judge³³ insisted on four separate, lengthy *in camera* (i.e., “in chambers,” or private) interviews between himself and a four-year-old boy who had accused his father of sexually abusing him. These interviews occurred without counsel for either parent being present. Ostensibly, the interviews were for the purpose of determining “whether the father should be given visitation rights in light of the claim of sexual abuse of the child and whether the child’s statement of sexual abuse should be credited.” However, during the four interviews—each of which lasted over an hour, and which produced 221 transcript pages—the judge asked relatively few questions about the alleged sex abuse, or even about the boy’s visits with his father.

Instead, the judge concentrated on a charge (previously made in court) that the father had claimed that he had “the power to ‘fix’ the judge.” When the child repeated this to the judge in chambers, the enraged judge (in the words of New York’s Commission on Judicial Conduct) “lost the sense of detachment required of him, vented his displeasure on the child and engaged in what the referee correctly termed a ‘relentless and tenacious interrogation of the child.’”³⁴ The transcripts of the interviews reveal that the judge “turned the sessions with the [four-year-old] child into a series of grueling cross-examinations in which he became preoccupied and obsessed in pursuing the source of the ‘fixing’ remark and all but abandoned the serious allegations of child abuse that bore directly on the issues he was to determine.”³⁵

Specifically, the judge (a) called the child a liar or stated that he was not telling the truth more than two hundred times; (b) told the child approximately forty times that he had given contradictory testimony; (c) admonished the child to tell the truth more than two hundred times; (d) asked the child approximately 150 times who had told the child to testify as he had (it was clear that the judge suspected the child’s mother, but no evidence ever proved the mother was the source of the child’s remark); (e) told the child more than ten times that he had “better re-

member” or “must remember” after the child had indicated that he did not know the answer to a question; (f) inaccurately indicated to the child on four occasions that he might go to jail if he did not tell the truth; (g) inaccurately pointed out to the child that handcuffs carried by the court officer were used for people who did not tell the truth; and (h) told

the child more than fifty times that there would be “serious” trouble or “serious consequences” if he did not tell the truth, including that the child would be punished by God, that he could not leave the court, that he would have to repeatedly return to court, that lies would “hurt” the child’s mother, that the child might be handcuffed by a court officer, and that the child would have to live with his father against his expressed wishes.³⁶

Under these attacks and threats, delivered by the judge “roughly and in a rapid-fire fashion,” the child “cried” and “protested that he was tired or needed to rest,” but the judge “did not suspend or terminate his questioning of the child on any of those occasions.” This case had a happy ending. The mother retained custody of her son, and the father was given monitored supervised visitation. The judge was officially censured by New York’s Commission on Judicial Conduct—a rare and relatively serious penalty. But had not the mother’s lawyer (a prominent attorney) obtained transcripts of the private interviews, the judge’s shocking tactics would never have come to light. Indeed, the judge had already selected the notorious Dr. Arthur Green to make the custodial recommendation, and Green had—predictably—labeled the mother “delusional” and recommended giving custody of the boy to his alleged abuser.³⁷ As for the judge, he remained on the bench for years, even after the facts of this case brought about an official censure. Other mothers and children have not been as lucky as those in the previous case. In a Brooklyn, New York, case, a six-year-old girl who had accused her father of sexually abusing her—whose report was corroborated by an eyewitness and supported by Dr. Anne Meltzer, one of the state’s most respected evaluators of child sex abuse accusations—was repeatedly interrogated by the

family court judge in private sessions from which the mother's counsel was barred. The judge then sealed the transcripts of all these interviews and refused to give them to the mother's lawyer—even after she appealed his ruling, which awarded custody to the father. The judge claimed, on the record, that the child had admitted during these closed sessions (after how much time, or what sort of questioning, we can only guess) that the abuse incident never occurred. Yet sworn affidavits filed in that case reveal that even the mother's adversaries, including the law guardian (who recommended giving the girl into her father's custody), knew that the incident did indeed occur. (The only doubt was whether the father had ejaculated or the six-year-old girl had urinated in her clothes to account for the wetness observed by the eyewitness.) To this day the mother has never had access to the transcripts of these secret interrogations.³⁸

In another New York family court case, the judge rejected strong medical evidence of sexual abuse: a pediatrician, who believed abuse had occurred, reported “an enlarged clitoral hood” in the then eight-year-old girl, as well as a “clearly visible” introitus with margins that “were rather easily stretched.” The judge nevertheless insisted that the father was innocent of sex abuse. As the case dragged on, the judge repeatedly interviewed the girl in chambers, supposedly to find out about her living conditions in the father's home. But the mother's lawyer was not allowed inside; nor were the mother or her lawyer allowed to see the transcripts of those interrogations. Instead, as the mother later testified at a legislative hearing, she would wait anxiously outside the judge's chambers while her daughter told the judge (and afterward repeated to her mother) that her father had allowed her to smoke cigarettes and marijuana, had allowed boys at his house to “feel over her,” and had left her unsupervised with family members who were using and selling crack cocaine. She was also allowed to watch X-rated movies and drink alcohol. (She was eleven at the time.)

These revelations infuriated the judge—but not with the girl’s father. Instead, he turned his anger on the girl. “My daughter has come out of these interviews crying and yelling,” the mother testified at a hearing held by New York State Senator David A. Paterson. “She reported to me that he [the judge] yelled at her, called her a liar.” Noting that she had never been allowed to see the transcripts, the mother added, “I believe if these interviews were made available to the public it would clearly prove this judge has not [acted] in the best interest of my child, but has clearly put my child’s welfare at risk.”³⁹ In fact, the mother has reported that after one of the judge’s interviews, the child (who suffered from severe depression) told her she wanted to find a way to the roof of the courthouse so that she could throw herself off and die.⁴⁰

The special dangers of in camera hearings have long been acknowledged by the courts. New York’s highest court has stated that “grave risks” are always associated with a process that allows questioning children out of the hearing of the parents and lawyers.⁴¹ Yet family courts regularly ignore these “grave risks”—with often ghastly results.

JUDICIAL JAILINGS

One of the ways in which robed rage is “practically accomplished” is through the use of judicial jailings—that is, by heavy-handed use of a judge’s power to punish a litigant or another party for “contempt of court.” The power to hold a party or witness in contempt is intended to give courts the power to compel compliance with court orders or to enforce proper behavior during the legal process. And, in theory, jail sentences are very rarely imposed except as a last resort. (Significantly, jail is rarely used as a sanction against fathers who violate child support orders.) But in the mad, mad world of family courts, mothers (and sometimes their attorneys and expert witnesses) find themselves fac-

ing jail sentences with startling frequency—and for reasons they cannot seem to comprehend.

The case of the Idaho mother whose children were removed from her home without the mother's even knowing the evidence used against her has been discussed above. That mother was held in contempt—and sentenced to five days in jail—because the judge disapproved of her way of fighting his personal attacks.

The mother had learned that two of her children, after three months in foster care (during which she was rarely permitted to see or talk to them), were to be transferred suddenly, and without a court hearing, to the very father one of them had accused of sexually abusing him. (The younger child would later make similar disclosures to a therapist.) Faced with this threat, the mother signed an agreement with the father that allowed the boys to return to their mother's home under certain conditions. One condition was that the father would no longer accuse the mother of having a mental disorder—a condition the father and his attorney would later violate with impunity. Another was that the mother would not take the boy who had reported abuse to any counselor except one approved by two health care professionals who had, in turn, been approved by the father.

When the mother took the two boys to meet with a psychologist—even though her undisputed testimony later confirmed that the new psychologist did not perform the “counseling” forbidden by her agreement—the judge erupted. In two written decisions, he claimed that the mother suffered from a mental disorder and called the mother “obsessive and compulsive,” suggesting she was vindictive, mentally unbalanced, and dishonest. Then he ruled that she was in contempt of court and sentenced her to five days in jail.

That ruling was eventually reversed by another judge. But the threat of incarceration had a long-lasting effect on this mother. In conversations with us, she often displayed the scars of the psychological violence to which she had been subjected: she worried constantly about being

jailed for contempt in the future. She was not consoled by the fact that she had not violated any orders; as she said, "I didn't do anything wrong the first time." As financial support for her case wore thin and as she saw herself losing more and more of her custodial rights and visitation privileges, she oscillated between agitation and depression, between the inspiration to fight and a sense of hopelessness. The more hopeless she felt, the more she would talk about her fear of being jailed in the future for no good reason.

Her fears were not unfounded. In 1997, her ex-husband demanded the disclosure of all the records of a Texas psychologist to whom she had taken her sons for an evaluation two years earlier. The elder child had consistently alleged that the father had fondled his genitals; he had also shown great anxiety over the possibility that his father could learn what he told therapists. (He had refused to talk to one evaluator because his father worked in the same office building; on another occasion, he allegedly told his mother he was afraid of talking to anyone who was "an undercover Dad agent.") Accordingly, the mother opposed the disclosure of the therapist's records to her ex-husband. The psychologist shared her concerns. He wrote to the court that the forced disclosure of his private records "could be clinically detrimental to the children," adding that the two-year-old records "would not be relevant to their current functioning" in any case.⁴² Idaho law supported the mother; the Idaho Supreme Court had already ruled that experts' information that is ordinarily subject to professional privilege (and psychologists' records are ordinarily subject to such a privilege) is not subject to disclosure in litigation.⁴³ Courts of other states have likewise recognized that "the threat of court-ordered disclosure [in a custody case] can too easily become a strategic weapon for the other parent. Compelled disclosure of treatment information will impair the potential benefits of treatment" ⁴⁴

The Idaho family court disagreed, however, and ordered the disclosure of the psychologist's entire file to the father. When the mother

appealed, her legal arguments went largely unanswered by the father's attorney—but even this did not help her. The appellate judge affirmed the lower court's ruling compelling disclosure. What is more, he did this without even attempting to maintain the appearance of judicial objectivity. He began with the claim that the mother was barred by court order from taking the children to a psychologist for an evaluation in the first place. (This was not true: there was no such order.) Then he unleashed an attack on the mother and her lawyer for trying to protect the boy's privacy, ending with the literal threat of another contempt conviction for the "crime" of trying to keep a child's confidential statements confidential:

The father is clearly entitled to the records The contentions of the mother in this area, that the records are privileged or should be withheld from the father because of implications of abuse fly in the face of repeated findings and orders of this court and the court below. *The allegations contained in the brief of counsel border on contempt*, in light of specific findings and orders of the court in previous proceedings.⁴⁵ (emphasis added)

The appellate judge did not say what those "specific findings and orders" were; presumably he meant the trial judge's insistence that no abuse had taken place, despite the boy's sworn testimony (backed by a pediatrician) that it had. The judge was clear on one point, however: anyone who so much as mentioned the abuse allegation the boy had made against his father—though the boy had certainly made it, and though it was certainly relevant to the proposed disclosure of the psychologist's records to the father (because, if nothing else, it underscored the boy's fear that what he said about the father might find its way back to him)—risked being held in contempt of court. And when the trial resumed in the lower court, the family court judge told the psychologist, by telephone, that if all the records were not produced to the father that same afternoon in court, the mother "would be held in contempt and

put in jail until she complied.”⁴⁶ The mother’s fears of being jailed for no valid reason had been proved reasonable after all. Something similar happened to a Long Island, New York, mother during family court litigation. She spent twenty days in jail on a contempt charge for allegedly violating a visitation order she says she never had a chance to oppose. And, while she went to prison in handcuffs (for a crime she says she did not commit), she lost custody of her children. In fact, she has not even seen her children since 1994.

In 1992, this mother and her ex-husband had agreed in writing, during their divorce, that she would have full custody of the couple’s two boys (ages four and seven). Their agreement included a temporary visitation schedule. But after a visit with his father, one of the boys allegedly complained that “he puts his finger inside my tushie.”⁴⁷ The mother then sought an order requiring supervision of the father’s visits, using the family court in Suffolk County, where she lived at that time. The court appointed a law guardian to evaluate the situation. On one occasion, the mother blocked the father’s visits because of her fear the child was being abused; CPS ruled her complaint “unfounded,” and she was found to be in contempt of court. After that experience, the mother sent her children on visits to the father according to the terms of the stipulation, but she says the children periodically reported continuing abuse. The mother has told us she spent months trying to get the ear of the law guardian, but without success. (She says her children had no more success; she later complained to a grievance committee that “my sons had no contact with their law guardian since the initial interview and after many phone calls to him requesting a meeting with my children.”)⁴⁸

Finally, after the children returned from a weekend visit with their father complaining of severe pain and soreness, the mother felt she could not wait any longer for the law guardian to take action. She took the children to Nassau County Medical Center, where doctors found “possible sexual abuse by Hx [history]” in the older child and an “enlarged (purple) blood vessel” and a “large rectum for age” in the younger one.⁴⁹

CPS then began its own investigation, during which the mother says she was warned she could be charged with “neglect” if she allowed any more unsupervised visits with the father. According to the mother, the father did not seem to object at first. Besides, his temporary visitation order had expired, and the mother’s lawyer advised her not to do anything until CPS decided whether to proceed in court against the father. One day, to her surprise, the father appeared at the mother’s door demanding to see both boys. He had obtained a court order—as the result of an *ex parte* motion—but the mother says she had never seen the order, much less had the opportunity to argue against it, before the father came to her door. She told him he would have to wait for the results of the CPS investigation.

Almost immediately, the mother received an order to show cause, signed by the family court judge, accusing her of criminal contempt for violating the new visitation order (obtained without any prior notice to her). Once before, the mother had been found in contempt of a visitation order. This time the father wanted more than a warning or a fine: he was also seeking an immediate change of custody because of the mother’s “contempt.”

When the mother and her lawyer came to court to defend against the contempt charge, they were met with an unpleasant surprise. The judge would not consider any of the evidence of sexual abuse, despite its obvious bearing on the reasonableness of the mother’s conduct, to say nothing of its relevance to the father’s demand for custody. Instead, the judge sentenced the mother to a jail term. And that was not all: granting the father’s request for a punitive change of custody, the judge turned the two young boys over to the father on the spot. The mother was punished still further by being allowed only one hour a week of visitation with her children—under strict supervision.

In jail, she says, she was strip-searched, attacked by another inmate, and “violated in every which way.”

These events form one more concrete manifestation of family court madness. Like the mother accused of playing the “role of goddess,” this Long Island mother had run afoul of a family court culture in which to complain of suspected abuse, and to challenge the behavior of court auxiliaries (in this case a judge’s *ex parte* order and the inaction of a law guardian), is to invite the label “rebel.” Thus it hardly mattered, in the end, that the mother’s violation of a visitation order may not have been willful or even unreasonable. It hardly mattered that jail is a harsh and unusual penalty for contempt in any case, and that a change of custody is a bizarre penalty for unwittingly blocking a single visit.

This mother never regained custody of her boys; her visitation eventually dwindled to nothing, partly because the father failed to deliver the boys for visits. The father was never held in contempt for those failures. The mother has not seen or heard from her boys since 1994, and says she has suffered from stress-related illnesses. She says she is trying to insulate herself somewhat from the “indescribable pain” of a system that “has no form of escape.”

An even more extreme example of outsized contempt rulings was described in testimony during the July 1989 legislative hearing into family court abuses sponsored by New York State Senator David A. Paterson. A Brooklyn mother, a Black schoolteacher, began her testimony by stating that she had been repeatedly jailed by Family Court Judge Leon S. Deutsch⁵⁰ for reasons she could not comprehend: “This case has been in the Family Court for six years since my child was five years old . . . [and] during these six years I have spent one night in jail, one afternoon in jail without a hearing or a trial, and I have been sentenced to fifteen days in jail.”

After describing repeated acts of alleged sexual abuse, corroborated by several doctors and psychologists, the mother resumed her talk about jail, saying that the judge “can sentence me and put me in jail as he already has,” and concluding, “Are his powers limitless?”⁵¹

Indeed, the judge had not only jailed the mother—he had even threatened to hold a treating psychiatrist in contempt for believing the child who said she had been abused. The psychiatrist, who headed a clinic where the child underwent treatment for “suicidal depression,” testified at Senator Paterson’s hearing that the mother had taken the then eight-year-old girl to a pediatrician, “who determined sexual abuse, and reported the findings in detail.”⁵² (The pediatrician had found “an enlarged clitoral hood” and a “clearly visible” introitus with margins that “were rather easily stretched.”) Judge Deutsch, however, stating that he doubted the child’s story and wanted a “neutral” evaluation, referred the girl to the psychiatrist’s clinic, which made a positive finding of sexual abuse and presented it to the court.

When the judge learned that this psychiatrist’s clinic was treating the child for sexual abuse trauma (in group and individual therapy), “there was an angry response from the judge, insisting that when he had determined that the girl was lying, the clinic had no right bringing up the issue of sexual abuse or treatment for her [the child].”⁵³ The psychiatrist told the legislature that, in response, “an explanation was presented to the court, stating that during the evaluation, findings of sexual abuse were made, and the child was indeed suffering from suicidal depression due to the specific trauma . . . [and that] the clinic’s responsibility was to treat her [the child] for it.” The judge reacted by choosing another validator, who “decided” the girl was lying.⁵⁴ Then, having obtained the assent of the law guardian, the judge transferred the girl’s custody to the father.

The psychiatrist exclaimed to the legislators present at the hearing: “Now in addition [to transferring custody to the father] he [the judge] also ordered the therapist from my clinic to stop contact immediately with the child. He made sure that no time was given for properly terminating any therapeutic contact” When the girl’s therapist pleaded with the court, “asking at least to have some time to terminate with the child—as it is she’s losing her mother, she’s losing a therapist, and she’s losing all

the support systems—the therapist was warned in an open court that if she ever tries to contact the child, or makes any contact with the child, she'll be held in contempt of court!"⁵⁵

Why do family court judges so often resort to the heavy-handed application of contempt powers? As we have argued throughout this book, family court "madness" is closely related to parental "mutiny." Judges who see their authority questioned in a case involving the highly emotional accusation of child sex abuse seem to use contempt rulings, or threats of contempt rulings, to rein in the litigants (or their advocates) making such accusations. And when the litigants resist the contempt rulings, this only reinforces the judges' original concern. Thus, a judge's misuse of contempt powers (i.e., using them not to enforce legitimate orders but to bully protective mothers or others who support them) reflexively re-creates the mad family court system, a system that in turn governs or informs each of the judge's actions.

A close look at still another case helps to make this even clearer. In 1990, a Staten Island, New York, judge threw a mother in jail for contempt of court for filing a petition that asked the judge to vacate a temporary custody award he had just made to the father. The judge stated that the petition "on its face is a contemptuous statement,"⁵⁶ because the mother had charged in the petition (which she wrote herself) that the judge and the father's attorney and the law guardian were acting "in collusion" with one another to strip her of custody of her seven-year-old daughter, who, she believed, was subjected to sexually inappropriate behavior during weekend visitation with the father.

To assess the judge's ruling, it is important to understand the proceedings the mother's petition complained of.

A court in another jurisdiction, where both parents had lived at the time, had awarded the mother custody of her daughter a year earlier, granting weekend visitation to the father. But, according to the mother, the girl came home from her visits complaining of having to sleep in the same room with her father and his new girlfriend.

After failing to obtain her ex-husband's agreement to change the sleeping arrangements, the mother made an abuse report against him to CPS. The father responded by seeking a change of custody. The judge ordered forensic mental health evaluations for the whole family.

The examining psychiatrist, experienced in the ways of family courts, considered it important to sound out the mother on her willingness to obey court orders, even if they required her to send the child to visits with the father that she might consider harmful. When the psychiatrist pressed her about what she would do if the judge forced her to send her daughter to her ex-husband for such visits—pointing out that if she refused to obey she could be held in contempt of court—the mother said, “If I have to be in contempt, then I will be in contempt.”

The mother had said nothing—and had been asked nothing—about taking her child out of the court's jurisdiction. But within this interactional setting—within a court system continually threatened by mothers' mutiny—the psychiatrist “situatedly” defined the mother's defiant statement as a declaration of her intent to go “on the run.” His report stated that the mother did “not appear concerned with contempt of court” and therefore “could abscond with her child.”⁵⁷ Indeed, the psychiatrist claimed she was the “type” to abscond with her child, and concluded—in another discursive leap—by recommending a change of custody: “It is this examiner's opinion that the child's interests would be best served if she were in the care of her father.”

Of course, the psychiatrist had not really been retained to evaluate the likelihood that the mother would kidnap her child. If he had been, perhaps he would have paid more attention to the mother's family situation and physical condition, both of which militated against her becoming a kidnapper. She was a middle-aged mother who lived with two children, not one; the elder child, a fifteen-year-old girl, could not be abandoned and would be very difficult to bring with the mother if she fled; and the mother had a serious heart condition. What is more, there is no evidence that the mother had ever actually violated any court or-

der; the psychiatrist simply determined (by means best known to himself) that she was the “type” to do so.

What had really happened was that the mother’s behavior had been situatedly defined by the terms of the family court culture. Determination equaled defiance; defiance equaled mutiny; and mutiny, as usual, brought about judicial madness.

After the psychiatrist’s report was given to the judge and to the law guardian (not to the parents), the father suddenly “learned” of the report and made an emergency application for a change of custody.

According to the mother (in statements made afterward on the court record), when she arrived at the family court to oppose her ex-husband’s custody petition, she found her ex-husband’s attorney already in the courtroom speaking to the judge. She then immediately asked for court-appointed counsel or, in the alternative, for an adjournment so that she could obtain her own counsel.⁵⁸ Both requests were denied; she was ordered to sit outside while her ex-husband’s lawyer and the law guardian met with the judge in his private chambers for hours.

While she waited nervously outside, she saw her ex-husband’s attorney give two boxes of tapes to the law guardian, which were then taken into the judge’s chambers. (The mother was never told what was on the tapes; the judge later confirmed having listened to them but did not say what they were.) The mother also saw her ex-husband try to telephone the child’s teachers, apparently making arrangements of some sort, as if (she later thought) he knew already what was about to happen.

At almost 4:55 that afternoon, the judge finally entered the courtroom proper and, reading from “two yellow pieces of paper,” told the mother he “already had given him [the father] temporary custody” of the child.⁵⁹ The mother protested vehemently, asking, “How could you issue it [temporary custody] when I don’t have an attorney and I’m asking for an attorney?”⁶⁰ (She might have added, “And when I never even heard the evidence that was used against me?”) That evening, the law guardian

came to the house with the child's father and the police and took the child away from the mother. A court date was set for several months later for a trial to determine permanent custody.

The mother, not wanting to wait several months to seek the return of her child, promptly wrote a petition asking the judge to vacate his award of temporary custody to the father. The petition, for the most part, described the events recounted above, but the mother also claimed there had been a "conspiracy" between the judge, the father's attorney, and the law guardian to strip her of custody without due process of law, essentially because of the long, private conference they had held in her absence and during which they had apparently listened to tape recordings.

The judge scheduled a hearing on the mother's petition. She appeared at the hearing to represent herself—as she told the judge, "They [attorneys] want ten thousand dollars and I can't give them that."⁶¹ It was at this point that the illogic of her case reached a Kafkaesque pitch. Rather than addressing the merits of her petition (which, in our opinion, deserved attention), the judge insisted on focusing on the mother's use of the word "conspiracy" in her petition. Over her repeated denials, the judge angrily claimed that this was a personal attack on him, the judge, which he characterized as "contemptuous on its face."⁶² He insisted that the mother's petition (filed, remember, in an effort to win back custody of her child) was an outrage; no reasonable challenge, he said, could be made to his order transferring temporary custody because of the psychiatrist's "prediction" that she would "abscond with the child"—in other words, no objection from the mother to this bit of psychiatric fortune-telling, nor any evidence presented in her favor, could have mattered in any event in his courtroom. Thus, in effect, the judge reasoned completely around the mother's right to confront the evidence against her—a legal maneuver that turned the US Constitution on its head.

And yet the infuriated judge was so sure of his position that he told the mother to her face that he could not understand why she had petitioned for a change of his procedurally bizarre order in the first place: “For you to come in here and expect me to unilaterally reverse myself is absurd!”⁶³ Needless to say, the judge did not vacate his temporary custody order. Instead, he forced the mother to spend several days in jail for contempt of court, based solely on the language of her petition—specifically, her use of the word “conspiracy.” And this despite the fact that the mother repeatedly denied she meant any personal insult to the judge. In the end, she also lost permanent custody too—all because she objected to her ex-husband’s practice of having the seven-year-old girl sleep in the same room with her father and the father’s girlfriend.

JUDICIAL NAME-CALLING

After everything described above, it will come as no surprise that family court judges sometimes use name-calling as another way of attacking protective mothers. “Vindictive,” “malicious,” “neurotic,” “paranoid,” and “mentally ill” are all labels we have found in the mouths of family court judges as they describe protective mothers. Judicial name-calling may seem a minor matter next to the abuses already described in this chapter. However, name-calling deserves serious attention because it helps to shape the progress of a case. It is a way of using part of the court proceeding to accomplish what is commonly done in a variety of interactional settings, in which participants use some part of their interactive discourse as an occasion to describe it, or explain it, or furnish the gist or upshot, or in other words to engage in the practice of “formulating” (Garfinkel and Sacks 1970). In short, when judges apply labels to protective mothers who are litigants in their courts, they are providing a steadily unfolding explanation (or “summing up”) of their actions through the use of pejorative names.

Heritage and Watson (1979), in their description and analysis of the conversational work of “formulating,” found that formulations may have a “special role to play” when the topic has been “the object of contest or negotiation” (pp. . . 149–150). In keeping with this finding, our analysis of court records reveals that judicial name-calling, as a “type” of formulation, arises when the case takes on problematic meaning—as judges and mothers come to see the facts of the case from diametrically opposed points of view.

For instance, in the Idaho case described earlier in this chapter, the protective mother was not diagnosed with a mental illness by the court-appointed psychiatrist. It was only when she began to protest the court’s actions that the labels “obsessive and compulsive” and “borderline personality disorder” began to stick to her.

The mother’s troubles began when the court-appointed psychiatrist (a professional colleague of her ex-husband, a physician) commented favorably on the ex-husband in a “home study” report he offered to the family court. The mother contends that the psychiatrist did not disclose his professional relationship with the father and misrepresented the comments of the children in his report. Accordingly, she filed an ethics grievance against the psychiatrist. (No official action was ever taken against him.)

Thereafter, when the psychiatrist testified during trial, he abruptly changed his diagnosis of the mother who had accused him. Now he claimed she suffered from “borderline personality disorder.” He based this claim partly on the fact that the mother had filed a grievance against him and partly on the fact that, according to him, another psychiatrist involved in the case had made that diagnosis. This was, however, denied under oath by the other psychiatrist.

Despite the flimsy basis for this “diagnosis”—a self-serving response to an ethics complaint and a bit of testimony that was possibly perjured and almost certainly inaccurate—the judge accepted it. Now the mother had been tarred with the label “borderline personality disorder.”

The abuse allegation had been settled between the parties with the agreement that (1) the father would have no visitation or custodial rights to the girl who had accused him, and (2) the mother would not seek to prove abuse had occurred so long as the father did not claim it had not. But when the family court judge issued his decision in the divorce case, he devoted much attention to the mother's request that her ex-husband cover most of her legal fees (his annual income was over \$163,000, while hers was negligible), and while ostensibly discussing this financial issue he implied that the father had been unfairly accused of abuse.⁶⁴ Now labels that announced "mentally ill" and "false abuse accusation" had been firmly planted on the mother—although without any real justification in the factual record. Family court's process of "formulating" the issues by means of its own labels was off to a running start.

The effects were visible almost at once. While the decision quoted above was still being written, another of the children disclosed that he had been sexually abused by the father—and a pediatrician confirmed that the boy's report was credible and did not appear to be the product of coaching. The judge's reaction was not to require an investigation of this new charge. Instead, he announced that he was removing himself from the case, claiming that the new accusation prejudiced him too much against the mother to enable him to continue to preside. (This did not, however, prevent him from issuing the harsh criticism of the mother already quoted.) Evidently, he simply assumed, before seeing any evidence, that the charge could not possibly be true.

A new judge took over in June 1993. But so decisive was the unwritten record summarized in the first judge's name-calling that even the new judge's first determination in the case—that the boy who said he was abused believed what he said—only convinced the judge that the boy was suffering from a delusion and had to be removed from the "abuse atmosphere" of the mother's home. He ordered both him and his younger brother immediately placed in foster care, where for weeks the nine- and five-year-old children were virtually unable to see or hear

from their mother. This judge also stated for the record, without even giving the mother an opportunity to present her case at a full hearing, that no abuse of any kind had taken place!⁶⁵

The mother fought for the return of her children. She and the father did, in fact, agree that the boys could return to her home, although on rather onerous conditions. But as the father fought for a reduction of his child support payments and the mother continued to defend herself, the new judge began to characterize her as “obsessive and compulsive” for what he called her excessive litigation (ignoring the legal battles launched by the father). He used the same label in more than one decision, including one that granted the father the child support reduction he wanted. The judge cited the “extraordinary legal expense” the father had supposedly incurred due to the mother’s “obsessive and compulsive” litigation.⁶⁶

Significantly, the factual record (as opposed to the unofficial record created by judicial labeling) did not tally with the judge’s findings. As justification for reducing the father’s child support obligation, the judge had stated, “The [father] has had to defend multiple appeals and new litigation since 1993 with no end in sight.” Yet in fact the mother, who had appealed exactly twice, had been successful in one appeal and had already paid the father’s attorney’s fees in connection with the other. Analysis of the father’s other claimed legal expenses—which were accepted without a single amendment by the judge—shows that the figure asserted by the father’s attorneys was wildly inflated.⁶⁷

None of this helped the mother win a more just decision on appeal. Amazingly, the appellate judge specifically refused to trouble himself with the facts underlying the trial judge’s decision condemning the mother and slashing her child support:

The argument [that the trial judge miscalculated the relevant costs] is a tortuous reassessment of the evidence offered below, recast in light favorable to plaintiff and replete with plaintiff

's interpretation. [Apparently the judge meant the plaintiff's arithmetic, since that was the extent of the "interpretation" involved!] It is an invitation for this court to re-find the facts found by the magistrate There is no basis for the appellate court to interfere with the facts found by the trier of fact on competent evidence.⁶⁸

This meant, in effect, that the facts no longer mattered: even though the crux of the family court's attack on the mother ostensibly turned on fees and expenses, the actual amounts were no longer important. What mattered was the label the mother carried. She had been called crazy, compulsive, and vindictive. And of course the arguments of a crazy woman need not be taken seriously.⁶⁹

JUDGES AND THEIR AUXILIARIES

This book's discussion of judicial excess against protective parents would not be complete without examining the conduct of the auxiliary figures in the family courts.

"Robed rage" rarely occurs in a vacuum. Instead, we find that it is usually embedded in "explicative transactions"—that is, rulings by which judges intend an exemplary effect on subsequent decisions and (retrospectively) on prior ones. However, Pollner (1979), in his study of explicative transactions in the traffic courts, showed that for rulings to have an exemplary or definitional force—in other words, to be explicative—they usually need to be made "in the presence of onlookers" (such as other defendants). This is because, in the presence of others, the judge is "constituting the situated meaning of the particulars [of each case] to which s/he responds . . ." (pp. 228–229). That is, "the present case [is] considered [in the presence of onlookers] in terms of its capacity to jeopardize or preserve features of already adjudicated cases and its capacity to furnish [or prevent] undesirable precedents" (p. 246).

Other “defendants” (usually called “respondents” in family court) are not present during a protective parent proceeding. The “onlookers” who are necessary for the production of explicative rulings are, therefore, the auxiliary actors—law guardians, caseworkers, mental health experts, and so on—who collaborate in the production of judicial decision making in family courts. That is, family court judges, concerned with the exemplary force of their decisions (as a way of preserving the features of their previously adjudicated cases and preventing unwanted precedents), regularly attend to the interests and opinions of the cadre of auxiliaries.

Former Texas prosecutor Randy Burton, joining two other writers, complained in a 1993 memorandum to former United States Attorney General Janet F. Reno that the close working relationship between judges and family attorneys reached the point of dangerous cronyism. The memorandum expressed particular concern about the judicial appointment of law guardians to represent children in suspected abuse cases. Citing the findings of the Texas Supreme Court Task Force on Judicial Appointments, the authors pointed out that “in some areas of the state, judges use [law guardian] appointment income as a reward or incentive to campaign supporters.”⁷⁰

In 1996, a local journalist reported to his editor that the main financial sponsor of a campaign rally for a New York judge was a lawyer then representing a father accused of child abuse in a case before that very judge. The child’s court-appointed law guardian was also present at the rally. Both lawyers (the father’s attorney and the child’s law guardian) made disparaging remarks to the judge about the mother in the case (who was not present), according to the journalist. Soon thereafter, the mother lost all visitation privileges with her eight-year-old daughter. The mother’s lawyer, when he learned of the out-of-court comments between the judge and the other lawyers (and their context—a political donor remarking on a case before the object of his largesse), asked the judge to

remove himself from the case.⁷¹ The judge not only refused but fined the mother's lawyer \$1,000.⁷²

Court-appointed mental health experts wield extraordinary influence in family courts. At a congressional hearing in 1992, a New York matrimonial lawyer testified that such "experts" can twist family law procedure into bizarre shapes: "The mother is ordered to submit to a psychiatric exam by chosen psychiatrists . . . [who] then diagnose the mother as . . . paranoid and delusional for believing that her child is being sexually abused by the father Once this diagnosis is made . . . she will absolutely lose her child."⁷³ The lawyer prefaced her comments by asserting that "these horrible things happen once these cases land within the system" (p. 73, emphasis added), thus consolidating family court judges with the experts they appoint.

Perhaps because family courts operate in a culture that is *sui generis*, judges are largely unaffected by occasional scrutiny from the press or even from legislators. For example, in 1989, New York's state legislature held an unprecedented two-day joint hearing involving four different committees into aspects of the family court system.⁷⁴ Mothers and health care professionals testified to the abuses of the family court system. In fact, Assemblyman Oliver Koppell (who chaired the hearing), after overwhelming evidence was presented against one particular Brooklyn Family Court judge (Leon Deutsch), was moved to discuss ways of removing a judge from office.

In his courtroom, Judge Deutsch (whose law clerk was present throughout the hearing to take notes on the witnesses, many of whom were litigants before that judge) brushed off the criticism. In one case, he began a court hearing in an abuse case by gratuitously telling the mother, "I have been told [the mother], members of her family and [her attorney] have testified at those public hearings relating to this very case." He did not seem to feel the need to make any further comment. That case ended with the total suspension of the mother's visits with her eight-year-old daughter. Nothing happened to the judge.

BEHIND ROBED RAGE: COURTROOM VS. PUBLIC FORUM

One unusual feature of court proceedings concerning alleged child abuse is the cloak of confidentiality (ostensibly to protect child victims) that insulates such proceedings from the general public. This helps to drive a wedge between what judges say about cases in their own courtrooms (comments that are heard only by experienced court auxiliaries, family court attorneys, and the litigants themselves) and what they say about the system when they know their comments will be read by the public at large. Thus, judges who have been asked by reporters to comment on the family court system in general have sometimes made statements that seem quite at odds with their own rulings in particular cases (which were not available to the public).

For example, in 1990, Manhattan family court Judge Jeffrey Gallet told New York Newsday that a Hasidic mother's fatal beating of her eight-year-old Hasidic son, after previous attacks had gone unnoticed by authorities, showed that "the whole system has lost its logic, its cohesion, its ability to function . . . there's no oversight, no accountability."⁷⁵ This complaint of "no accountability" came strangely from a judge who, in one case before him a few years earlier, had removed a six-year-old child from her home without even taking evidence, simply because her mother (concerning whom there was no evidence of any sort of child abuse or neglect) had missed an appointment with a psychologist when chest pains had sent her to a hospital instead. A special counsel to an important New York State Senate committee later characterized the judge's actions in that case as illegal and unconstitutional,⁷⁶ and later testimony not only revealed very credible evidence of abuse but also established that the child's experiences in foster care had been "miserable," pointing to the fact that the child had been forced to "handle feces."⁷⁷

Judge Gallet's public comments were at odds with his own performance on another issue as well. He told the *New York Law Journal* in

1989, regarding the controversial validator Dr. Arthur Green (who frequently accused divorcing mothers of lying about sex abuse), that “he [Judge Gallet] is concerned that there is a proliferation of unqualified validators [in the family courts] many of whom possess no more than marginal scientific and educational credentials.... There is a danger that judges will abdicate their responsibilities to mental health experts ... [who] often come to their conclusions using incompetent and incomplete evidence, without regard for even the most basic due process safeguards.”⁷⁸ Yet Judge Gallet himself appointed Dr. Green, and others like him, to make determinations concerning the sexual abuse of children.

How could this same Jeffrey Gallet speak so forcefully of family courts’ lack of oversight and accountability, and their reliance on dubious expert witness testimony, when in his own courtroom he seemed so willing to place himself above the law and to rely on the questionable views of controversial mental health experts?

One’s first impulse is to set this down to hypocrisy. But perhaps the observations laid out previously suggest a different interpretation. Context can alter judgments; the attitudes of the relevant “onlookers” must be taken into account. A newspaper is read by laymen. The family court system, on the other hand, is controlled by an unusual cadre of specialists who, as we have seen (and will see in more detail in the chapters that follow), bring their own brand of justice to actual abuse proceedings. A judge—speaking as a concerned citizen to other concerned citizens—is naturally unwilling to endorse a system that has allowed the killing of a child. But the same judge, in the company of specialists—those family court auxiliaries who are rarely visible to the general public but who are either physically in the courtroom or “virtually” present—approaches an abuse inquiry in the strange way this cadre has evolved, giving no apparent thought to what the general public would think if it knew what was going on.

This example illuminates how judges “situatedly make and manage meaning” for their auxiliaries (both physical and virtual) in the courtroom. However, because meaning is by its very nature a “situated” production (accomplished within the context of the interactional setting), it is subject to change when the “onlookers” consist of members of the public and not the usual cadre of auxiliary actors who constitute the judicial setting in which judges make and manage meaning.

HOW MOTHERS RESPOND TO ROBED RAGE

Protective mothers not infrequently initiate direct confrontations with judges—a phenomenon rare outside family courts. Protective mothers sometimes plead for the return of their children, and sometimes boldly accuse the judge and their auxiliaries of ethical violations, of conspiratorial behavior, even of corruption. Transcripts of family court cases sometimes contain monologues by protective mothers nearly half an hour in length.

A particularly dramatic example occurred in a California case that unfolded in the late 1990s (and is still not fully resolved). In 1995, the mother had sole physical (and joint legal) custody of her three school-age children, two of whom (two girls, ages four and six) had complained of being sexually abused during visitation with their father. A medical examination carried out at the University of California, Davis, Medical Center showed that the older girl had “thickened folds” of the anus, “generalized increased vascularity” of the perihymenal tissue, and an “irregular, narrow thickened” hymenal wall.⁷⁹

The judge assigned a law guardian and a court-appointed evaluator to interview the mother and her children. However, the law guardian never investigated the charges of abuse (in fact, according to the mother, he flatly “refused to speak to the medical examiner” whose report had supported the charge).⁸⁰ As for the evaluator—as soon as his report was

given to the court, the judge abruptly transferred custody of all three children to their father and denied the mother any further contact with them.

The main reason for this custody transfer was that the court-appointed evaluator condemned the mother for having taped a thirty-minute video in which the child repeated her reports of abuse by the father. The mother had intended to give the tape to investigators; in fact, the mother would later assure the judge she “had been instructed by a sheriff’s detective to tape.”⁸¹ But the reaction of the family court system was swift and extreme. The evaluator charged that the mother’s making of the videotape (never mind the acts reported by the child on the

videotape) was “verbally sexualizing and sexually explicit coaching of the child.”⁸² Surely most outsiders would consider the evidence of abuse by the father in this case more compelling than the evaluator’s debatable complaint, which in any event did not point to any abuse on the mother’s part. Yet the judge’s rulings against the mother read like a judgment of excommunication. Not only did he remove the children from the mother—he denied her all visitation privileges and added a “Stay Away Order” preventing her from attending school events and extracurricular activities and even from contacting the children’s schoolteachers.⁸³ One afternoon, the mother—on a California freeway during a rush hour traffic jam—saw her children in a nearby car and waved to them. Incredible as it sounds, this drew criticism from the judge at the next court appearance: “I don’t want any accidental stuff happening out on roadways, I don’t want any waving by Mom to the children.”⁸⁴

The mother continued to present evidence that her youngest child had made disclosures to her schoolteacher and to her classmates of sexual abuse. The judge rejected these disclosures without investigation by classing the case as a “type” he claimed to be familiar with. In so doing, he invoked the “documentary method of interpretation” to deflect all the evidence that pointed to abuse (a conclusion he was not prepared to reach); he made sense and order of those same facts by showing how the

particulars of the case at hand were actually representative of a certain *mold*:

This case is really just a divorce If I were not a person, a judge, who has been exposed to these situations of false allegations of sexual abuse several times, I would probably react with horror at the thought that these children had been abused by their father, but I have seen this accusation raised on occasions in other marriages. I am sorry to say to those of you in this room that it appears to be a phenomenon of this county and the adjoining Calaveras County. But this is not the time and this is not the place for witchcraft or anything resembling it.⁸⁵

The next day, the mother's lawyer tried to argue that the judge had refused to hear relevant evidence. The judge, however, did not need evidence to support his made-in-advance reading of the case:

LAWYER FOR MOTHER: What I have tried to assert on September 26th and again yesterday is that you haven't listened to the evidence.

JUDGE: Do you have someone who observed [the father] engage in any act of sexual abuse of these children as a credible independent witness? The answer to that is "no," and you know the answer is no! Now, don't harass this Court any more!⁸⁶

In other words, the judge now required the mother to present an eye-witness to an act of sexual abuse before he would even consider evidence that it had occurred—even though the mother had been barred from all contact with her children without a single witness having observed her harm the children, simply because she believed her children's reports! In 1998, the mother, now bankrupt, went before the court as her own representative and passionately demanded an explanation for her continuing isolation from her children:

There was no legitimate reason in the world that my kids were ever taken away from me in the first place. I'm not a bad person; I've never committed a crime, I've never been accused of committing a crime. You all took one stupid video and you blew it into something. That's not the way it is. That was thirty minutes out of a lifetime. You totally ignored everything else in my lifetime: How I communicated with the kids, the love I've given them, I gave birth to these kids, I nurtured them, I nursed them, I loved them, I never would do anything purposely to harm them. I told this Court over and over again I realize I made a mistake when I made that video, but it was not intentional, it was not something that was designed to hurt my children. You all took that one thing, you just blew it way out of proportion, then you punished me for what I believe in . . .

. . . Our nation was founded on the ability for people to believe, able to believe what they want to believe and nobody should be punished for that. That's exactly what's happened to me, and the court has actually criminalized me because I believe what my kids told me. You are entitled to your opinion; you are fully entitled to not believe if you want to. I'm not telling [you] you have to, but I'm telling [you] you don't have a right to judge what I can and can't believe and punish me for what I do and do not believe. My children—those are my children, I have a constitutional right to have a relationship with my own children. I'm not a criminal, I mean, I'm not a drug addict, I've never done anything to where my time with my kids has to be monitored. They did perfectly fine with me all these years. I was their primary caretaker. Nobody took that into consideration. You didn't go and ask my kids where they wanted to go, you didn't do that, you didn't want to hear from me, you barred me from testifying. No matter how many times my attorney would ask, you would not let me on the stand. I don't remember—I

can't remember what the Appellate Court says, but that is a violation of due process. That's like you putting—you made me into a criminal and with this stupid parent alienation syndrome [sic], which doesn't even exist, you wouldn't even let me on the witness stand to defend myself against it. Just because he [the court-appointed expert] believes in it, it does not make it true. The American Psychological Association does not believe in it. It has been debunked by every legitimate therapist there is....⁸⁷

... This is pointless to have a hearing in front of you; you are totally biased against me.... I cannot get a fair hearing in front of you....⁸⁸

... I want my constitutional rights to have the free association with my children. I'm not a criminal. Just because [of] that one stinking, stupid videotape, that you've blown into a huge thing, does not make me a criminal, does not make me a bad parent.⁸⁹

It was not only the judge who had penalized this mother for believing her children. A court-appointed visitation supervisor had actually complained in court because one of the children had written to her mother and the mother had written back. The mother assailed her conduct as the judge sat in stony silence:

It was a violation of my constitutional rights for anyone to ever say my child couldn't write me a letter.... She is a child, but she has the same constitutional rights that adults do. She reached out to me and I responded. In a situation like this how do you think my daughter would have felt if I didn't respond to her? The supervisor and I do not get along. We're never going to get along. It's not in the best interests [of the children] to continue seeing the supervisor if she and I can't get along.⁹⁰

The father's attorney apparently spoke for the system when he scornfully described the mother's monologue as having been delivered in an "aggressive, abusive, belligerent, nasty, intolerant tone of voice."⁹¹

The mother made accusations against the system as well. She even alleged the existence of a "racket" in which the head of the court-ordered supervision program made "hundreds of thousands of dollars off of Parental Alienation Syndrome, which does not exist,"⁹² since mothers who lost custody for bringing abuse allegations (and were stigmatized as suffering from "Parental Alienation Syndrome") had to pay the court-appointed supervisor to monitor their visitation with their children.

It is illustrative of the dilemma in which many protective mothers find themselves in family court that this mother tried, at various times, to demonstrate her "parental competence" in ways governed by the family court's own procedural and institutional terms. Since, as we have seen, the "mother-as-nurturer" is so easily eclipsed by the situatedly achieved definition of "mother-as-litigant," the protective mother must address the practically reasoned supervening definition of motherhood—the one that revolves totally around her litigation conduct—to convince the court that she is fit to parent her children. But this California mother also, and repeatedly, expressed the fact that parental fitness could not really be defined as the court was defining it.⁹³

From the point of view of mother-as-litigant and not mother-as-nurturer, making the controversial videotape was no doubt an error in judgment, since the mother's questions could have "contaminated" the testimony of an impressionable child witness. But the act surely arose from nothing more malicious than shock over what the child had said and concern that her own account of it might not be believed. The family court refused to see it that way. And this, alas, is typical: the mother's attempt to protect her children is itself classified as a form of abuse. In the high-profile case of Dr. Elizabeth Morgan, the cosmetic surgeon who went to jail for over two years while her daughter was in hiding with her parents, the mother's medical photographs of her daughter's injuries—clearly

taken with a view toward presenting evidence to ensure her daughter's protection—were described by the family court as “pornographic”!

The mutinous behavior of the California mother described above continued outside the courtroom. During the late 1990s and into early 2000s, the mother met every week with a handful of other mothers on the steps of the state capitol. Together they handed out materials to state legislators and their aides containing a litany of civil rights complaints the mother had suffered at the hands of the judge and his cadre of auxiliaries. They criticized the law guardian, the court-appointed evaluator, and the visitation supervisor who ran a program for court-ordered supervised visits. The mother attracted attention by wearing a T-shirt printed with the judge's name and picture. Above his head, in bold letters, was the word “WANTED.”

ADDENDUM—CHARACTER ASSASSINATION OF BIPOC MOTHERS

Guyanese Mother's Painful Odyssey in the Domestic Courts

A Nassau County (Long Island), New York, mother, born in Guyana to Indian parents, suffered a painful odyssey in the domestic courts. While her litigation took place in the New York Supreme Court, rather than Family Court, all the elements of her case were tragically representative of errant family courts, as will be shown. Nonetheless, we are finding a trend since publication of our first edition that points to a “blurring” of the lines demarcating courts that handle child custody and visitation matters. Even more so, we have observed that such blurring will intensify to an even greater extent when the mother is a member of the Black, Indigenous, and People of Color (BIPOC) population, as demonstrated in the case presently examined in this chapter's addendum.

For context, in family court the judges rely heavily, if not exclusively, on their own auxiliaries—law guardians, visitation supervisors, child protective service case workers, court-appointed custody evaluators, and so forth—to inform their decisions, whereas in state supreme court⁹⁴ they generally do not. The reason for this is a distinct class difference between these courts. While the state supreme court normally serves a middle-class and upper-middle-class demographic sector, the family court traditionally serves a working-class or welfare-dependent population and, often, people of color. In the former, two matrimonial lawyers argue for each side, and each brings witnesses from their client's personal "social network"—country club members, rotary club members, school alumnae, neighbors, colleagues, and friends—to testify on their behalf. In the latter, however, litigants do not have at their disposal equivalent social networks of high esteem. Instead, their support network is quite different. It consists of the next-door neighbor, the person sitting next to them in the pew, or the co-worker sharing their shift on the job. Moreover, the members of their personal support network are mainly invisible to the court since they would hardly have time to take off from work to testify at a family court proceeding. But even if they did, the family courts generally ignore the mother's social network as they replace her network with their own.

Responding to the absence of an established social network from which to draw testimonial evidence, the family courts have created their own ad hoc social networks—child protective service caseworkers, visitation monitors/supervisors, court-appointed mental health experts, and law guardians/minor's counsel/guardians ad litem (GALs)/Attorney for the Child (AFC)—to inform their critical decisions about the child custody and visitation matters that have come before them. Not surprisingly, inasmuch as judges in the state supreme courts are influenced by the affluent, who occupy high ranks in the hierarchy of community life,⁹⁵ the family court judges are similarly influenced by a hierarchy—although one that is of their own creation—consisting of salaried state

employees and private consultants whose referral base are the family courts.

Looking for a moment at visitation centers whose referral base are the courts, it is rather common for visitation monitors/supervisors working at such court-contracting visitation facilities to serve as key witnesses in family court proceedings. Visitation centers, in fact, play a dominant role in family court cases because traditionally the indigent parent's home is not always the optimal setting for the parent to see the child: many such parents live in rodent-infested, crowded apartments exposed to plumbing and electrical hazards, in tenement buildings where drug dealers nest. Of course, the indigent parent didn't choose or create such abject living conditions for themselves or for their children; instead, they are victims of slumlords who operate with impunity. Nonetheless, given such dire living conditions, visitation centers become the "preferred" place for parents to see their children when issues of neglect and abuse are before the court. But, alas, these centers also serve as prejudicial witnesses for the mother, as she is constantly under their watchful eye. Given that the monitors/supervisors at the visitation center are required by the court to regularly submit written reports to the judge on the mother's behavior during visitation with her child, any inadvertent action or statement made by the mother that would cause her to fall into disfavor with the visitation center could prove highly detrimental to her in the family court proceeding.

The BIPOC mother in this case, while an architectural engineer and well-respected in her profession and in her church community, fell into an abyss so redolent of the family courts that the court might as well have changed its name from "Supreme Court" to "Family Court." For the purpose of analysis, we are going to consider this as a "de facto" family court proceeding, even though it took place officially in the New York Supreme Court. What this does show, however, is that with the BIPOC population of protective mothers, even if their cases are heard in supreme court and not in family court, the ingrained biases against

women of color are so severe that the perniciousness of the family courts spreads to the supreme courts—making the latter operate and function *de facto* as an insidious family court system.

Here is an inkling into the climate of the court in this case. The BIPOC mother, on more than one occasion, was subjected to invectives, laced with profanities, hurled at her by her ex-husband. This occurred as she sat at the client's table and her ex-husband passed by. While her attorney was out of the room at the time, the law guardian heard the ex-husband spewing venom at the mother. The law guardian, whose unreserved hostility toward the mother was demonstrated throughout the proceeding,⁹⁶ although nearby did not intervene. In general, this sort of acrimonious and contemptuous atmosphere, wherein mothers are often repeatedly denigrated, humiliated, and attacked by judges and their auxiliaries, while quite common in family court,⁹⁷ is not normally found in state supreme court—unless of course the mother is a person of color! Quite predictably, the reprehensible behavior displayed by the ex-husband in cursing out the BIPOC mother did not occasion a reproof by the law guardian, as it is rather commonplace for minority mothers to suffer rebuke in the courts. In short, racism—playing a key role in this case—brought the all-too-common assault of mothers in the family courts ironically within the ambit of the state supreme courts, which hitherto had not been predisposed to such extreme censure of mothers.

Judge Appoints a Hostile Law Guardian—and Case Takes a Turn for the Worse

At the heart of this BIPOC case were two children (then aged three and four) who were allegedly subjected to sexual abuse during overnight visitation with the father, who had twice tested positive for cocaine⁹⁸ and, according to the mother, had been charged at least twice with DUIs (resulting in a temporarily suspended license), probation violations, and disorderly conduct. The children told their mother that their father had

been drunk during their visits with him, and that he had grabbed their private parts while yelling profanities at them. Around that time, the mother began to observe some very disturbing behavior in her children after these weekend visits with their father. She took her three-year-old girl and four-year-old boy to a therapist for help. She also prepared an Excel spreadsheet to notate the children's recurring traumatic symptoms that they were evincing:

encopresis, enuresis, night terrors; screaming in their sleep; sexually acting out with one another; disrobing their undergarments; lack of modesty or decorum; preoccupation with their body parts; describing the private parts of their grandmother; fear and trepidation about visits to their father and his family members; low self-esteem; feelings of angst and the need to escape—the need to run away.⁹⁹

During multiple sessions, the children's therapist, after hearing the children's description of their father's behavior, followed up with a report to the child abuse hotline, known in New York as the Central Registry.¹⁰⁰ However, before calling in the report, the therapist saw the children on several occasions so as to establish a pattern of abuse by the father.

The case was grinding along at its usual slow pace, with the mother having sole custody and the father awarded overnight visitation. The case, however, took a nosedive when the judge suddenly removed the law guardian, more recently referred to in New York as the Attorney for the Child (AFC),¹⁰¹ and replaced him with an AFC who recommended a drastic change in the custodial arrangement of the children: sole residential custody to the father and restricted supervised visitation for the mother at a visitation center contracting with the court. The cost to the mother would be \$560 a week to pay for the visitation supervisor, and another \$150 a week to pay a therapist to counsel the mother on her purportedly unjustified fears for the safety of her children.

Two strongly countervailing themes came to light in the courtroom on the day the AFC was removed from the case to be replaced by a hostile AFC:

First, the father's attorney asked the court to remove the AFC from the case because the AFC, according to the father's counsel, was not "zealously representing the children" in that he was purportedly "putting forth one position based upon a three-year-old's [sex abuse] allegation and not investigating any other possibility"—the latter of which was meant to insinuate that the mother had "coached" the child to make false allegations of sex abuse against the father.¹⁰²

Second, the AFC countered with a strong rebuttal to the father's attorney's criticism:

Yes, throughout this proceeding I have zealously advocated for my clients [the 3 and 4 year old children]. The first issue that came to my attention involved the use of alcohol by [the father]. He denied that however, and he was [to be] removed from the residence [where his ex-wife lived] if he was under the influence of alcohol. What happened? He came home to the house. He fell asleep in the house. The police were called. The police came and they arrested him for being under the influence of alcohol in his residence ... I was then told there may be a cocaine issue ... He was tested for cocaine and he came back positive ... Thereafter I was told that the father did not have an EpiPen for the children.¹⁰³

At stake here is that, according to the father's counsel, the AFC's willingness to advance a position of sexual trauma to a child based on a three year old's disclosure was cause for taking the drastic step of removing the guardian ad litem from the case because such a position showed that the law guardian was not "zealously" representing the young child. The elephant in the room cannot be ignored. The only one the AFC was not representing "zealously" was the father. Instead, the guardian af-

firmatively stated his deep concern for the safety of the young children based on the undisputed history of alcoholism, cocaine usage, and possible life-threatening medical neglect if the father would not have had a proper EpiPen for the child handy.

While the attorney for the father couldn't dispute the facts, he hammered away at the fact that in such young children it's often very difficult to get a clear narrative on the abuse incidents, while evading discussion of the father's history of drugs and alcohol or his failure to have an EpiPen handy (with the proper dosage for a child), just in case the child should display signs of allergy-induced respiratory distress. The

AFC countered with the fact that the child's statement about abuse was corroborated by the therapist: "I was then called by the social worker who had been seeing the children who told me that the children had disclosed recent sexual[ly] inappropriate behavior."¹⁰⁴

The AFC assured the court that this social worker would provide an affidavit as well as testify before the court to the children's credible disclosures of sexual abuse by the father. Then, the judge granted the father's motion to have the law guardian relieved as the children's attorney. The judge based her ruling on her assumption that the AFC had "prompted" the child by asking about sexual abuse. However, the mother's counsel correctly pointed out to the judge that the AFC only posed that question to the child after first receiving in writing a letter from the children's therapist concerning a recent disclosure of sexual abuse made by the children during their therapy session:

Now that the Court knows about that letter, that would not have been a prompting of the child . . . Why did [the AFC] ask the child that question? We now know there was a letter from the therapist. Hence, why [the AFC] had inquired to [sic] the child.¹⁰⁵

With the removal of the guardian ad litem, the case went into a pitiful tailspin. The children continued to have overnight visitation from which

they returned bitterly complaining of verbal abuse, sexual aggression, and exposure to intoxication. Their behavior continued to descend into serious maladjustment. The mother was attempting to put out fires on all fronts.

Mother Is Stranded and Attempts to Represent Herself against a Hostile Judge

Staying up at night with two traumatized children who had been suffering from frequent episodes of nocturnal enuresis and encopresis (urinary and fecal incontinence), night terrors, and screaming in their sleep, this Guyanese mother was beside herself. The new AFC appointed by the judge was radically different than the prior one. She didn't respond to the mother's behests to protect her children from ongoing abuse and exposure to their father's alcohol consumption. The mother's counsel was frustrated, too. He tried to console the mother by telling her the children will eventually "grow up" and be "better able to handle themselves" in fending off the father.

So, she dismissed her counsel and had to fend for herself. Her older child, now already five years of age, told his mother he wanted to speak to someone about what was going on with his sister and himself at the father's home during the overnight visits. Acting as a champion for her children, she confidently took her children to speak to the police, who informed her that she can go to the court to obtain a temporary order of protection. She went *ex parte* before another judge, explained the circumstances, and was immediately granted a temporary order of protection.

The mother would soon learn that her actions in seeking a temporary order of protection would prove fatal. What happened next was that when trial court judge who had been hearing the case all along—and who had dismissed the law guardian for zealously advocating for the

protection of the children—learned that the mother had sought relief from another judge, she became furious with the mother. The mother, who was now ordered to appear before the custody judge since the father had filed an emergency order to show cause for an immediate change of custody away from her, found herself subject to a harangue. To wit, the judge accused her of “disturbing” and “deceptive” behavior and even impugned her fitness to retain custody of her children. The case was set for trial and the mother lost custody of her children. She was given limited supervised visitation at a court-contracting visitation center. Sadly, the judge deprived this mother of any semblance of justice. The mother’s minority status was now reinforced by the judge, rendering her disenfranchised as she was now deprived of the basic constitutional rights afforded to any US citizen to care for their child.

To wit, the judge prevented the mother from:

- 1) presenting testimony that would have revealed the children’s disclosures about their father;
- 2) obtaining evidence of the children’s relevant statements to child abuse investigators; and
- 3) taking the children to any professionals or experts who could evaluate their reports of their father’s actions.¹⁰⁶

As part of the draconian mistreatment of this BIPOC mother, the judge, according to the mother, disallowed testimony from her own social network, such as colleagues and friends. The mother emphasized that she was even denied the right to bring her own private therapist to testify to her character, integrity, and sound reasons for seeking temporary relief from the other court. Instead, the judge based her custody decision in part on the testimony of the visitation supervisor who ran the facility that receives most, if not all, of its referrals from the court. Thus, in substituting the mother’s own personal social network for the ad hoc social networks bred by the courts, the supreme court was acting *de facto* as a

family court, wherein witnesses are commonly drawn from the facilities that service the courts. This was not surprising since women of color, often seen as downtrodden despite their educational and professional achievements, are treated in the state supreme court in the same demoralized way that family courts mistreat women: their social networks are overlooked as potential witnesses in favor of the coterie of (hostile) service providers that contract with the courts, thereby prejudicing the protective mother in her custody and visitation matter pending before the court.

Adding to the injustices faced by this mother, the judge—after wrongly relieving the children’s attorney because he asked the children about sexual abuse after receiving alarming communication from the children’s therapist—then encouraged the new AFC to exclude evidence of her clients’ wishes and concerns from the proceedings.¹⁰⁷ A clear pattern emerged in this case to show that the judge, instead of applying the legally required standard for modification of custody, awarded custody to the father as a means of punishing the mother for filing an emergency petition in another court seeking protection for the children¹⁰⁸—a step she had to take given that the trial court had proven to be woefully remiss in protecting her children.

The judge, even before showing open hostility toward the BIPOC mother, took a more or less dispassionate position toward these children in the face of disturbing behavior possibly indicative of sexual abuse. For example, in the beginning of the case when CPS was investigating the complaints of sex abuse made by the children against the father, and the father was at that time ordered by the court to see his children under supervision at a center contracting with the court, the head supervisor at that center wrote reports to the court that should have been of concern to the judge. In one of those progress reports, the head supervisor, a licensed social worker, wrote to the judge that she “observed [the boy] sitting on [his sister] and touched her private area over her clothing.”¹⁰⁹ Later, in testimony, this same supervisor would state that she had a

negative impression of the father, whom she called “arrogant” because he was singing his own praises while claiming that “this is all [his wife’s] wrongdoing.”¹¹⁰ She would also testify to having monitored the progress of the children’s visits with their father at his home, and that the older child said that “papa [the father] poked [his sister’s] vagina,” and that the children repeatedly “acted out” during that time that they were seeing their father for overnight visitation.¹¹¹

Judge Unleashes Her Ire on BIPOC Mother

“Robed rage,” however, reached its pinnacle when this BIPOC mother going pro se—solely facing the ferocity and fearsomeness of the court—was subject to a ceaseless diatribe at the hands of this enraged judge. The mother had merely sought a temporary order of protection in an effort to protect her children after one of them made a new report of apparently abusive behavior by the father. In fact, the trial judge did not even allow the mother to explain why she had filed the petition for an order of protection in the first place. Instead, she condemned her:

You have demonstrated a complete irrational thought process here [Y]ou decided to go to . . . [another] court and rehash allegations that go back months and months and present them to a judge as something that is new and real. It’s not—it’s not genuine. It’s deceptive to the Court.¹¹²

The judge took yet another slug at the BIPOC mother when, just a few minutes after accusing her of acting irrationally and with ill intent, she assailed the mother once again:

Your behavior is very, very disturbing . . . you have done things that do not make sense, that are deceptive.

Then, in the same breath the judge pontificated that the mother’s actions of going to another court to seek emergency relief for her children

was a sign of maternal incompetence severe enough to warrant her losing custody of her children:

I question whether or not you are able to be the custodial parent of these children . . . I am going to entertain [your ex-husband's] motion for a custody change pending the rest of this case because, frankly, I don't know what kind of parenting is going on in that home.¹¹³

In judging this mother's maternal fitness based on her litigation steps, such as seeking an emergency order of protection from another court (a completely legitimate process to allow for emergency relief based on ex parte petitions brought before a judge presiding over that section), the madness of the family courts becomes crystal clear. By scrutinizing a mother's litigation posture to render a judgment of her parental competence, her role of "mother-as-nurturer" is totally supplanted by her role of "mother-as-litigant." In so doing, custody awards, as in this case, are made *not* on the basis of a mother's ability to nurture her children. Instead, custody is determined solely on the basis of how the mother fares in the litigation arena and, most crucially, whether she plays the game to please the judge or not. Undoubtedly, it's a treacherous game as the consequences can prove fatal, as witnessed in this case where the mother desperate to protect her children sought an emergency order of protection from another court and was subsequently punished with the loss of custody of her children by the trial court judge that her case was before.

Mother Forced into "Ransom" Visits—and More

The day the court denuded the mother in this case of custody of her children the judge compounded the assault on the mother by issuing an order of protection against her. Consequently, the mother would risk jail if she were to go down to school to take a peek at her children in the

school yard. In addition, now with the Order of Protection in place, the mother could only see her children under strict supervision, to be held at a visitation facility contracting with the court. The mother, who had depleted her life savings, and those of her loving family members who supported her throughout the litigation process, now had to pay the visitation center “ransom” of \$560 a week, but as a condition precedent to having supervised visitation with her children she would also have to pay a court-approved therapist another \$150 a week, in addition to these fees paid to the visitation supervision center. In sum, the ransom to see her children amounted to \$710 per week.

Mother Learns to Look the Other Way When Children Make New Disclosures and Sexually Act Out

With time, however, the mother “learned” to play the game. As reported by the mother, when her young daughter (who had recently turned five) complained of new acts of sexual aggression made against her by the father—alleged “biting” of her private parts—the mother consciously restrained herself from showing alarm. Instead, she changed the subject. When the boy, now six years of age, pulled down his underwear and pants in front of his mother during a supervised visit, the mother didn’t react either. This mother learned that to stay in the children’s lives, for those precious few hours a week, costing her hundreds of dollars that she didn’t have, she had to subscribe to the madness of the courts, unfortunately espousing their views and their presuppositions. In fact, she would obtain a “progress” report from the court-ordered therapist that would attest to her adjustment to her new role as a mother, as defined by a court suffused with madness.

A “Good” Report from Therapist—and a Broken Heart for the Mother

To wit, this protective mother adjusted to restraining herself from reacting to her children’s disturbing reports of apparent abuse, and, likewise, adjusted to going from a 168-hour week of being around her children to a mere a few hours a week under strict supervision, where everything she did or said would be notated by the supervisor and reported to the court. Her therapist would proudly tell the court of this mother’s “progress” in adjusting to her non-parenting role, where she had very limited access to her children only under conditions of strict supervision, and where the visits would automatically cease when the mother would no longer be able to pay “ransom” to the supervisor and the court-ordered therapist in order to see her children:

When I first met [the mother] she appeared confused and had many conflicting emotions that needed to be sorted out. She reported to me that the biggest mistake she made in the process of her divorce involved alerting the authorities about potential sexual misconduct of her ex-husband towards the couple’s children. This was based on verbal reports of sexualized discussion from the children and unfortunately resulted in [the mother] having limited supervised visits with the children. Fortunately, [the mother] now is fully aware that she acted on emotions and impulse and going forward would handle the same situation very differently.

Since the inception of her treatment, [the mother] has been fully engaged and compliant. [The mother] has also increased her insight into herself and that of her role as a mother. Additionally, [the mother] has demonstrated a willingness to co-parent with her soon to be ex-husband and has been utilizing her time away from her children to grow emotionally herself. Professionally, I am extremely pleased with the progress [the mother] has made in such a short time. She is able to recognize

and define her role and responsibilities as a mother and an individual and is looking forward to having her children back in her life in a more meaningful way.

In my professional opinion, [the mother] has indeed grown emotionally from her experience and continues to do so. She is attentive, asks pertinent questions and is always aware of her emotional status. She has demonstrated increased insight into herself and better understands the developmental needs of her young children and can verbally report to me how she would address any future concerns she may have regarding the children differently.¹¹⁴

However, the mother put into her own words exactly how she felt when the court decimated her maternal privilege to care for her children:

After [the judge] gave her Decision and Order to place an order of protection against me where I could not see my kids without a supervisor present, I felt as if my stomach was split open and my guts were bare for all to see. I felt like a shell.¹¹⁵

Gaslighting of BIPOC Mother is Compounded by History of Racial Trauma

The “gaslighting” of this mother—forcing her to undergo court-ordered “therapy” to admit that her perceptions and judgment were errant, when indeed they were not—is intended to help preserve an unjust system that subjugates women as per the whim and will of judges. As “robed rage” has stolen motherhood away from many unsuspecting women across many sectors of the US population, its effects on BIPOC mothers are undoubtedly compounded by the fact that many women of color have already suffered societal prejudices causing their integrity, sincerity, and “sanity” (specifically, their ability to recognize when they become targets of bigotry and racial discrimination) to be called into question. So, when

BIPOC mothers are attacked mercilessly by judges out of control with rage, such mothers likely suffer a revisiting of prior racial trauma, and this only intensifies the agony they experience in the courts.

In speaking about her trial, this BIPOC mother would describe the utter contempt that the law guardian and judge had for her; this was made evident in their smirks, laughter, and in the grimaces they shared with one another, while the mother sat captively for hours as the fate of her children was recklessly decided by those infected with judicial madness. One of the mother's advocates, who observed the trial, described the savagery of the court as a "modern-day lynching." Sadly, she was right on point.¹¹⁶